



POLICE DEPARTMENT

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In the Matter of the Disciplinary Proceedings	:	FINAL
- against -	:	ORDER
Police Officer Nerys Ramirez	:	OF
Tax Registry No. 939271	:	DISMISSAL
Police Service Area 8	:	

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Police Officer Nerys Ramirez, Tax Registry No. 939271, having been served with written notice, has been tried on written Charges and Specifications numbered 2023-27722 and 2023-27959, as set forth on forms P.D. 468-121, dated January 9, 2023 (amended April 12, 2024) and February 22, 2023, respectively. After a review of the entire record, Respondent, having pleaded Guilty, is found Guilty of all charges and specifications.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Nerys Ramirez from the Police Service of the City of New York.


JESSICA S. TISCH
POLICE COMMISSIONER

EFFECTIVE:

5/16/25



POLICE DEPARTMENT

April 23, 2025

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In the Matter of the Charges and Specifications	:	Case Nos.
- against -	:	2023-27722
Police Officer Nerys Ramirez	:	2023-27959
Tax Registry No. 939271	:	
Police Service Area 8	:	

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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Jeff S. Adler
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: David Green, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent: Michael Martinez, Esq.
Worth, London & Martinez, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

CHARGES AND SPECIFICATIONS

Disciplinary Case No. 2023-27722

1. Said Police Officer Nerys Ramirez, while assigned to the 28 Precinct, on or about January 1, 2023, at about 0813 hours, while off duty in Englewood, New Jersey, wrongfully was unfit for duty due to her consumption of alcohol. *(As amended)*

A.G. 304-04, Page 1, Paragraphs 1 & 2

FITNESS FOR DUTY

2. Said Police Officer Nerys Ramirez, while assigned to the 28 Precinct, on or about January 1, 2023, at about 0813 hours, while off duty in Englewood, New Jersey, wrongfully failed to comply with repeated lawful orders given to her by an on-duty Englewood City Police Officer. *(As amended)*

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

P.G. 221-20, Page 2, Paragraph 4

CONFRONTATION
SITUATIONS

3. Said Police Officer Nerys Ramirez, while assigned to the 28 Precinct, on or about January 1, 2023, while off duty in Englewood, New Jersey, having been involved in an off-duty incident resulting in her arrest, wrongfully failed to make required notifications to the Department's Operations Unit. *(As amended)*

P.G. 212-32, Page 1, Note

OFF DUTY INCIDENTS
INVOLVING UNIFORMED
MEMBERS OF THE
SERVICE

4. Said Police Officer Nerys Ramirez, while assigned to the 28 Precinct, on or about January 1, 2023, while off duty in Englewood, New Jersey, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that, having been advised by on-duty members of the Englewood City Police Department that she was being arrested, wrongfully failed to identify herself immediately as a member of the Department, made discourteous or otherwise inappropriate statements to those police officers, and wrongfully moved her body or arms to resist being handcuffed. *(As added)*

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

A.G. 318-09, Page 1, Paragraph 1

MEMBER OF THE
SERVICE ARRESTED –
DISCIPLINARY MATTERS

5. Said Police Officer Nerys Ramirez, while assigned to the 28 Precinct, on or about multiple dates between August 2018 and February 11, 2023, improperly utilized her personal Facebook or other social media account, in that said Police Officer posted or

displayed one or more photographs of herself or other people wearing the official Department uniform or otherwise displaying official identification, patches, or badges without authorization to do so. *(As added)*

A.G. 304-20, Page 1, Paragraph 3

PERSONAL SOCIAL
MEDIA ACCOUNTS AND
POLICY

Disciplinary Case No. 2023-27959

1. Said Police Officer Nerys Ramirez, while off duty and assigned to the 28 Precinct, on or about February 18, 2023, in the confines of New York County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer Ramirez did wrongfully operate a motor vehicle while under the influence of an intoxicant.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

NY VTL § 1192(3)

OPERATING A MOTOR
VEHICLE WHILE UNDER
THE INFLUENCE OF
ALCOHOL OR DRUGS

2. Said Police Officer Nerys Ramirez, while off duty and assigned to the 28 Precinct, on or about February 18, 2023, in the confines of New York County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer Ramirez did wrongfully operate a motor vehicle while her ability to do so was impaired by an intoxicant.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

NY VTL § 1192(1)

OPERATING A MOTOR
VEHICLE WHILE UNDER
THE INFLUENCE OF
ALCOHOL OR DRUGS

3. Said Police Officer Nerys Ramirez, while off duty and assigned to the 28 Precinct, on or about February 18, 2023, in the confines of New York County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer Ramirez wrongfully refused to submit to a breathalyzer test.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

A.G. 304-04, Page 1, Additional Data

FITNESS FOR DUTY

NY VTL § 1194(1)(b)

ARREST AND TESTING

4. Said Police Officer Nerys Ramirez, while off duty and assigned to the 28 Precinct, on or about February 18, 2023, in the confines of New York County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer Ramirez was unfit for duty.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

A.G. 304-04, Page 1, Paragraph 2

FITNESS FOR DUTY

5. Said Police Officer Nerys Ramirez, while off duty and assigned to the 28 Precinct, on or about February 18, 2023, in the confines of New York County, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer Ramirez impeded an ongoing criminal investigation of a Driving While Intoxicated case, in that she stated she was not the one operating her vehicle.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on March 27, 2025. Respondent, through her counsel, entered a plea of Guilty to the subject charges and testified in mitigation of the penalty. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in these matters, including Respondent's Guilty plea, I find Respondent Guilty and recommend a penalty of Termination from the New York City Police Department.

SUMMARY OF EVIDENCE IN MITIGATION

Respondent, who has more than 19 years of service with the Department, has pleaded guilty to charges in two separate cases, each of which involved her excessive consumption of alcohol while off duty. In one matter, Respondent, who was intoxicated and unfit for duty, wrongfully interfered with a New Jersey police officer during a car stop, and in the second case,

she was operating a motor vehicle while under the influence of alcohol. The facts of each matter will be discussed in greater detail below. The Department Advocate recommends a penalty of Termination based on the serious nature of the misconduct. Respondent, who testified that her behavior in these cases stemmed from her problems with alcohol abuse, asks for a penalty of Forced Separation that would allow her to file for vested interest retirement.

Case No. 2023-27722

Respondent admitted to the following allegations, as provided by the Department Advocate during his opening statement. (Tr. 9-15) At approximately 0800 hours on the morning of January 1, 2023, Respondent was a passenger in a vehicle with several friends. They had been out drinking alcohol at several locations in Manhattan, before deciding to drive to New Jersey to go to a spa. When they arrived, they realized the spa would not open for another hour, and so they drove to a coffee shop. The operator of the vehicle, a white Jeep, parked the car several feet away from the curb, as if she were double-parking (though there was no car parked next to her).

A New Jersey police officer, in uniform, pulled up behind the illegally parked vehicle, exited his RMP, and approached the passenger side on foot. As captured on the officer's Body-Worn Camera ("BWC") footage (Dept. Ex. 1), the officer had the front-seat passenger lower the window, and he began to speak with the operator, asking for her driver's license and telling her that she was blocking traffic. As he was doing so, Respondent exited the Jeep and stood directly behind the officer. The officer asked Respondent to move back, telling her several times that she was interfering with his doing his job. Rather than comply with his instruction, Respondent remained behind the officer, and repeatedly accused him of being rude. When the officer threatened to arrest Respondent, she momentarily stepped back to the sidewalk, but then returned

and told him to go ahead and arrest her. Respondent actively resisted and a physical struggle ensued, during which the officer had to take Respondent to the ground in order to place her in handcuffs.

Respondent was charged in New Jersey with obstructing governmental administration. She resolved her case with a plea to disorderly conduct. Respondent notified her Commanding Officer following the incident, but neglected to contact the Operations Unit as required.

Additionally, in an unrelated charge, Respondent admitted that she improperly used social media to post photographs of herself in uniform, contrary to the Department's guidelines.

Case No. 2023-27959

Respondent admitted to the following allegations, as set forth by the Department Advocate during his opening statement. (Tr. 16-22) At approximately 0445 hours on February 18, 2023, Respondent, who had been out drinking, was driving her vehicle on the Harlem River Drive with her friend in the front passenger seat. Respondent, who was intoxicated and unfit for duty, crashed her vehicle into the rear of an unoccupied RMP; the officers from that RMP had just pulled over in connection with an unrelated traffic incident, and exited their vehicle prior to the collision. Before the officers approached Respondent's white SUV, Respondent and her friend switched seats, so that the friend was now in the driver's seat.

BWC footage from Officers Rosin and Rios (Dept. Exs. 3 and 4, respectively), as well as Sergeant Lamley (Dept. Ex. 2), captured much of the interaction that followed. When asked by the sergeant who was driving, Respondent pointed to her friend. (Dept. Ex. 2 at 1:50-1:57) The two officers also initially stated that the friend was driving. Respondent told the sergeant that she is on the job, and in response to his question said she was not driving. (Dept. Ex. 2 at 4:14-

4:36) The friend was removed from the vehicle, and one of the officers informed her that she would be charged with driving while under the influence of alcohol. The friend immediately responded that she was not driving, then walked over to speak with Respondent through the passenger window. The friend said that she cannot take a DUI, but Respondent told her in Spanish that she will pay for everything and repeatedly advised the friend not to blow. Respondent also stated that if she gets out of the car it will be a problem. (Dept. Ex. 3 at 6:07-9:37)

The friend was handcuffed and placed in an RMP. As Officers Rosin and Rios were driving her to the precinct, the friend continued to insist that she was not driving. She explained that she followed the lead of Respondent because she is a police officer. Officer Rosin called Sergeant Lamey and informed him that it was actually Respondent who had been driving, and that she and the friend had exited the SUV after the collision and switched seats. (Dept. Ex. 3 at 15:12, 15:31, 16:56-17:11, 18:27-19:11, and 23:35-23:46)

Meanwhile, the sergeant's BWC captured his interaction with Respondent back at the scene. Once Respondent exited the SUV, she appeared to have difficulty focusing and responded slowly to instructions. There was a discussion among the officers about charging Respondent with being unfit for duty. Sergeant Lamey then received the call from Officer Rosin telling him that Respondent was driving, and the sergeant ordered other officers at the scene to take Respondent to the precinct. (Dept. Ex. 2 at 14:20-15:08, 16:07-16:42, 18:10-18:18, 20:39-21:33) Respondent refused to take the breathalyzer test, was charged with Driving While Intoxicated ("DWI"), and later pled guilty to a DWI misdemeanor.

Respondent's testimony

Respondent admitted to all the misconduct charged in these two cases. She testified that her behavior stemmed from her alcohol abuse, which started around the time of the COVID pandemic, when “the world was closed” and she spent much more time at home than usual. Before then, she was more of a “social drinker,” but during COVID she began drinking inside her home on a daily basis. That drinking continued after COVID, mostly at night. (Tr. 48, 50-51, 67-71.)

Additionally, Respondent testified about other stressors in her life. She had issues dealing with her son once he began college. Her father, who was living overseas, suffered strokes in 2021 and 2022, for which Respondent covered the medical expenses. In January 2023, a young police officer colleague of Respondent's committed suicide, which took a toll on her and led to even more drinking. (Tr. 49-50, 57-58)

It was within this context that each of the two incidents occurred. Regarding the first case, which occurred in the early morning hours of New Year's Day, Respondent testified that she planned to stay home on New Year's Eve with her mother, but friends called after midnight and persuaded her to go out drinking with them. They drank alcohol at several Manhattan locations throughout the night, before winding up in New Jersey where, as described above, the encounter with the police officer occurred. As she watched the video footage in court, Respondent stated that she was “so embarrassed” by her behavior. She described herself as “stupid drunk,” conceded she was “acting like a fool” toward the officer, and admitted she interfered with him doing his job. After the incident, Respondent did notify her Commanding Officer, but since she thought she was only issued the equivalent of a summons she did not realize she also was required to contact Operations. (Tr. 51-55, 71-82)

In the second matter, involving the DWI collision discussed above, Respondent conceded that she again was intoxicated after having gone out drinking with friends. She testified that although she could not recall all the details of that evening, her memory was refreshed after reviewing video footage and speaking with her friend. Respondent acknowledged that she had been operating the SUV at the time of the collision and then switched seats with her friend in order to avoid responsibility for driving since she already was in trouble with the job. She also admitted she told her friend not to take the breathalyzer test. (Tr. 61-62, 84-90)

According to Respondent, she did not realize she had an alcohol problem until after these cases. She testified that she finally sought help and attended Department counseling once a week for 21 weeks. At the same time, she attended an outpatient program two times per week. She continues to meet occasionally with a therapist through video conferencing. As a result of this counseling, Respondent described her current condition as "very good." (Tr. 62-65, 91)

PENALTY

In order to determine an appropriate penalty, this tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent, who was appointed to the Department on July 11, 2005, has pleaded guilty to multiple charges contained in two separate cases. The parties agree that due to the serious nature of the misconduct, some form of separation from the Department is warranted. Indeed,

when one adds the presumptive penalty days for the most serious offenses in *Case No. 2023-27722* (30 days for being unfit for duty, 15 days for failure to comply with the orders of the New Jersey police officer) and *Case No. 2023-27959* (50 days for DWI, 30 days for impeding an investigation, 30 days for refusal to submit to a breathalyzer test), the total is well over 90 days,¹ which the Guidelines state shall result in a presumed penalty of Termination or Forced Separation. (Guidelines, p. 13) The Department Advocate argues that the only appropriate penalty for Respondent's significant acts of misconduct is Termination. Counsel for Respondent, in contrast, asks that she be allowed to file for vested interest retirement, noting that her family (including her two children, ages 10 and 20) should not suffer for the two mistakes Respondent made after many years of service.

Respondent, who has more than 19 years with the Department, asks that consideration be given to the context in which her misconduct occurred. As discussed above, she had a problem with alcohol abuse, which she claims became more pronounced during the COVID pandemic and carried over afterward. She experienced stress regarding her father, who, while living overseas, suffered strokes in 2021 and 2022, which she asserts placed an emotional and financial strain on her. Respondent also testified that she was affected by the suicide of a police officer colleague in January 2023, which led to further drinking.

The defense also submitted character letters on Respondent's behalf from three NYPD Captains, Senta Caleb, Francisco Lopez, and Eric Heeren, each of whom lauded Respondent's dedication to the profession. They emphasized her "intelligence, drive, and professionalism," and her "commitment to honesty and integrity." The captains praised her for her "proactive" and "diligent" police work, and for her devotion to "the highest standards of ethical behavior."

¹ Under the principle of progressive discipline, as set forth in the Guidelines, Respondent's prior misconduct in *Case No. 2019-20161* could result in an additional 20-30 penalty days. (Guidelines, pp. 11-12)

Although the Captains were effusive in their praise of Respondent, it is difficult to reconcile their comments with Respondent's exceedingly poor judgment and behavior in these cases, as captured by the BWC footage in evidence. In the first matter, Respondent, who was intoxicated and unfit for duty after drinking alcohol for hours, interfered with a New Jersey Police Officer during what should have been a routine traffic stop. Without justification, Respondent exited the vehicle and aggressively confronted the officer. She repeatedly ignored his requests to step back so that he could do his job, eventually leading to her arrest. During the arrest, Respondent actively resisted, forcing the officer to take her to the ground in order to place her in handcuffs. Taken as a whole, Respondent's behavior was disturbingly and dangerously disproportionate to the situation at hand.

In the second matter, *just seven weeks later*, Respondent again consumed alcohol to the point where she was unfit for duty. On this occasion, she operated a motor vehicle on the Harlem River Drive while intoxicated, and with her friend inside the SUV as well. While driving in this condition, she smashed into the rear of a police vehicle that was stopped at the time, illustrating why drinking and driving is dangerous, illegal, and irresponsible. Fortunately, the RMP was not occupied at the moment of impact, averting what could have been a disastrous outcome.

Making matters infinitely worse, Respondent then tried to shift responsibility for the collision onto the front-seat passenger. Despite her intoxication, Respondent had the presence of mind to recognize the trouble she would face if caught driving while under the influence. In an effort to avoid accountability, Respondent, who was the operator, switched seats with the front-seat passenger, with the hope that her friend would take the fall for the collision. As captured in the video footage, she even lied to an NYPD sergeant, falsely identifying her friend as the driver.

She did so knowing full well that it would lead to her friend's arrest. The distraught friend was, in fact, handcuffed and driven to the precinct, before the officers eventually determined that Respondent had been the actual operator of the SUV. This reprehensible act on the part of Respondent, combined with the additional misconduct discussed above, makes her continued employment with the Department untenable, and warrants a penalty of Termination.

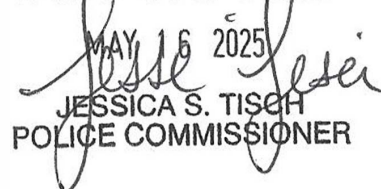
Police officers hold a vital position of public trust, and must be held to the highest standards of professionalism and integrity. With her egregious behavior and judgment in these two matters, Respondent acted contrary to the standards of conduct reasonably expected of one whose sworn duty is to uphold the law. Taking into account the totality of the facts and circumstances in these matters, I recommend a penalty of Termination from the New York City Police Department.

Respectfully submitted,



Jeff S. Adler
Assistant Deputy Commissioner Trials

APPROVED

MAY 16 2025

JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER NERYS RAMIREZ
TAX REGISTRY NO. 939271
DISCIPLINARY CASE NOS. 2023-27722 & 2023-27959

Respondent was appointed to the Department on July 11, 2005. On her three most recent annual performance evaluations, she was twice rated “Meets Standards” for 2019 and 2020, and received a rating of “Exceeds Expectations” for 2018. She has been awarded two medals for Meritorious Police Duty and two medals for Excellent Police Duty.

In 2015, Respondent forfeited 15 vacation days after pleading guilty to releasing found property to its owner without completing a property invoice, and being discourteous and disrespectful to a supervisor.

In 2020, Respondent forfeited 20 vacation days after pleading guilty to failing to arrest an individual who had an active arrest warrant, and releasing the individual without conducting a warrant check.

In connection with Case No. 2023-27722, Respondent was suspended without pay from January 3, 2023 through January 12, 2023; in connection with Case No. 2023-27959, she was suspended without pay from February 18, 2023 through March 19, 2023. Additionally, Respondent was placed on Level 2 Discipline Monitoring in April 2023; that monitoring remains ongoing. Respondent was previously on Level 2 Discipline Monitoring from April 2021 to October 2022.

For your consideration.

Jeff S. Adler
Assistant Deputy Commissioner Trials